

24TRCV03746 24TRCV03746

County: los-angeles

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Case Number: 24TRCV03746 Hearing Date: August 28, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

PATRICIA VILLA

;

Plaintiff,

vs.

RICHARD PALOMO

;

Defendant.

Case

No.:

24TRCV03746

Hearing

Date:

August
28, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PLAINTIFF PATRICIA VILLA'S MOTION TO COMPEL
FURTHER RESPONSES TO PLAINTIFF'S REQUESTS FOR PRODUCTION OF DOCUMENTS, SET
ONE

(2)

PLAINTIFF
PATRICIA VILLA'S MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S
REQUESTS FOR PRODUCTION OF DOCUMENTS, SET TWO

(3)

PLAINTIFF PATRICIA VILLA'S REQUEST FOR
MONETARY SANCTIONS

(4)

Defendant
Richard Palomo's request for monetary sanctions

MOVING PARTY: Plaintiff, Patricia Villa

RESPONDING PARTY: Defendant, Richard Palomo

(1)

Plaintiff

Patricia Villa's Motion to Compel Further Responses to Plaintiff's Requests for
Production of Documents, Set One, is DENIED pursuant to Code of Civil Procedure
section 2031.310, subdivision (a), and California Rules of Court, rule 3.1345.

(2)

Plaintiff

Patricia Villa's Motion to Compel Further Responses to Plaintiff's Requests for Production of Documents, Set Two, is DENIED pursuant to Code of Civil Procedure section 2031.310, subdivision (a), and California Rules of Court, rule 3.1345.

(3)

Plaintiff

Patricia Villa's Request for Monetary Sanctions is DENIED pursuant to Code of Civil Procedure sections 2023.030 and 2031.310, subdivision (h), and California Rules of Court, rule 3.1345.

(4)

Defendant

Richard Palomo's Request for Monetary Sanctions is DENIED pursuant to Code of Civil Procedure section 2031.310, subdivision (h).

The Court considers the moving papers filed on June 17, 2026, the opposition brief filed on August 11, 2026, and the reply brief filed on August 12, 2026.

BACKGROUND

Factual Background

On November 5, 2025, plaintiff Patricia Villa ("Plaintiff") filed the Complaint against defendants Richard Palomo ("Defendant") and DOES 1 through 100. The Complaint includes the following causes of action: (1) Specific Performance or Damages Based on an Express Contract; (2) Specific Performance or Damages Based on an Implied Contract; (3) Breach of Partnership Agreement (Corp. Code § 16201, et seq.); (4) Breach of Fiduciary Duty; (5) Fraud; (6) Unfair Business Practices; (7) Conversion; (8) Negligence; (9) Intentional Infliction of Emotional Distress; (10) Age Discrimination; (11) Gender Discrimination; (12) Partition of Real Property; (13) Accounting; and (14) Imposition of Constructive Trust.

On July 8, 2025, Plaintiff propounded Request for Production of Documents, Set One, on Defendant. (MTCF, p. 3:10-11.) Defendant provided initial responses on February 23, 2026. (MTCF, p. 3:11.)

On March 5, 2026, Plaintiff's counsel emailed a meet-and-confer letter concerning the discovery responses and conducted a telephonic conference with Defendant's counsel to discuss various matters, including the relevance of financial records, assets, household expenses, and tax returns. (Declaration of Aimee Tenaglia ("Tenaglia Decl."), ¶ 2; Declaration of Vanya Khanna ("Khanna Decl."), ¶ 3, Exh. A.) On the same day, Plaintiff propounded Request for Production of Documents, Set Two, on Defendant. (Khanna Decl., ¶ 2.)

On April 3, 2026, the parties reached an agreement whereby Defendant would serve responses to Set Two and amend their responses to Set One by May 4, 2026. (Khanna Decl., ¶ 2.) Furthermore, Plaintiff was granted an extension to file any necessary motions to compel further responses by June 18, 2026. (Khanna Decl., ¶ 4, Exh. B.)

On May 4, 2026, Defendant provided amended responses to Set One and initial responses to Set Two; both sets contained objections. (Khanna Decl., ¶¶ 5-6.)

On May 18, 2026, Plaintiff's counsel sent a meet-and-confer letter to Defendant addressing the alleged deficiencies in both sets of discovery responses. (Khanna Decl., ¶ 7, Exh. C; Tenaglia Decl., ¶ 4, Exh. A.)

On May 22 and 26, 2026, Defendant's counsel communicated that he was preparing a response to the meet-and-confer letter but was awaiting a discussion with his client. (Tenaglia Decl., ¶¶ 5-6, Exhs. B-C.)

On June 2, 2026, Plaintiff's counsel followed up regarding the response to the meet-and-confer letter. (Tenaglia Decl., ¶ 7, Exh. D.) On the same day, Defendant's counsel responded, assuring that he would provide a reply as soon as possible after consulting with his client, who was difficult to reach. (Tenaglia Decl., ¶ 7.)

On June 8, 2026, Defendant's counsel emailed Plaintiff's counsel to arrange a telephonic conference for June 11,

2026, after 2:00 p.m., to discuss ongoing discovery issues. (Tenaglia Decl., ¶ 8, Exh. E.) He also proposed extending the deadline for

filing any motions to compel, citing unexpected delays on his part. (Tenaglia Decl., ¶ 8, Exh. E.) Plaintiff's counsel agreed to schedule the

conference for 2:30 p.m. (Tenaglia

Decl., ¶ 8, Exh. E.)

On June 11, 2026, the

scheduled telephonic conference between the counsels did not occur. (Tenaglia Decl., ¶ 9; Declaration of John

Bachmayer ("Bachmayer Decl."), ¶ 11; Supplemental Declaration of Vanya Khanna

("Suppl. Khanna Decl."), ¶ 7.) Bachmayer

asserts that he received a call from Tenaglia, but the conference did not

proceed due to Khanna's inability to join; conversely, Khanna states that the

parties were unable to connect with Bachmayer.

(Bachmayer Decl., ¶ 11; Suppl. Khanna Decl., ¶ 8.)

On June 11, 2026, Plaintiff's counsel

sent an email requesting an extension of the deadline for filing any motions to

compel, proposing to move it from June 18, 2026, to July 6, 2026, to allow

Defendant's counsel the necessary time to collect additional responsive

documents. (Khanna Decl., ¶ 9, Exh. F.)

On June 12 and 15, 2026, Plaintiff's

counsel followed up on the extension request.

(Khanna Decl., ¶ 10, Exh. G; Suppl. Khanna Decl., ¶ 9, Exh. C.)

On June 16, 2026, Plaintiff's counsel

informed Defendant's counsel that they were preparing a motion to compel and

requested a two-week extension for its filing.

(Suppl. Khanna Decl., ¶ 11, Exh. D.)

Plaintiff's counsel indicated that if confirmation of the extension was

not received within one hour, they would proceed to file that day and would not

withdraw the motion. (Suppl. Khanna

Decl., ¶ 11, Exh. D.) Defendant's

counsel did not respond. (Suppl. Khanna

Decl., ¶ 11.)

LEGAL STANDARD

A motion to compel further responses to a demand for inspection or

production of documents may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmeritorious or overly generalized objections. (Code Civ. Proc., § 2031.310, subd. (a).) Moreover, “[t]he motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2031.310, subd. (b)(2).)

A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (Code Civ. Proc., § 2031.310, subd. (b)(1).) “To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.” (Digital Music News LLC v Superior Court (2014) 226 Cal.App.4th 216, 224 (“Digital Music News LLC”).) If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (Kirkland v. Superior Court (2002) 95 Cal. App.4th 92, 98.)

“[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

MEET AND CONFER REQUIREMENT

Plaintiff was required to meet and confer with Defendant before filing this omnibus motion. (Code Civ. Proc., § 2031.310, subd. (b)(2).) Code of Civil Procedure section 2016.040 states that a meet and confer declaration “in support of a motion [to compel] shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each

issue presented by the motion.” (Code Civ. Proc., § 2016.040.) “ ‘The parties must present to each other the merits of their respective positions with the same candor, specificity and support during informal negotiations as during the briefing of discovery motions. Only after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a ‘sincere’ effort to resolve the matter.’ ” (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1293-1294, quoting Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1435.)

On March 5, 2026, Plaintiff’s counsel emailed a meet-and-confer letter concerning the discovery responses and conducted a telephonic conference with Defendant’s counsel to discuss various matters, including the relevance of financial records, assets, household expenses, and tax returns. (Tenaglia Decl., ¶ 2; Khanna Decl., ¶ 3, Exh. A.) On the same day, Plaintiff propounded Request for Production of Documents, Set Two, on Defendant. (Khanna Decl., ¶ 2.)

On April 3, 2026, the parties reached an agreement whereby Defendant would serve responses to Set Two and amend their responses to Set One by May 4, 2026. (Khanna Decl., ¶ 2.) Furthermore, Plaintiff was granted an extension to file any necessary motions to compel further responses by June 18, 2026. (Khanna Decl., ¶ 4, Exh. B.)

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On June 8, 2026, Defendant's counsel emailed Plaintiff's counsel to arrange a telephonic conference for June 11, 2026, after 2:00 p.m., to discuss ongoing discovery issues. (Tenaglia Decl., ¶ 8, Exh. E.) He also proposed extending the deadline for filing any motions to compel, citing unexpected delays on his part. (Tenaglia Decl., ¶ 8, Exh. E.) Plaintiff's counsel agreed to schedule the conference for 2:30 p.m. (Tenaglia Decl., ¶ 8, Exh. E.)

On June 11, 2026, the scheduled telephonic conference between the counsels did not occur. (Tenaglia Decl., ¶ 9; Bachmayer Decl., ¶ 11; Suppl. Khanna Decl., ¶ 7.) Bachmayer asserts that he received a call from Tenaglia, but the conference did not proceed due to Khanna's inability to join; conversely, Khanna states that the parties were unable to connect with Bachmayer. (Bachmayer Decl., ¶ 11; Suppl. Khanna Decl., ¶ 8.)

On June 11, 2026, Plaintiff's counsel sent an email requesting an extension of the deadline for filing any motions to compel, proposing to move it from June 18, 2026, to July 6, 2026, to allow Defendant's counsel the necessary time to collect additional responsive documents. (Khanna Decl., ¶ 9, Exh. F.)

On June 12 and 15, 2026, Plaintiff's counsel followed up on the extension request. (Khanna Decl., ¶ 10, Exh. G; Suppl. Khanna Decl., ¶ 9, Exh. C.)

On June 16, 2026, Plaintiff's counsel informed Defendant's counsel that they were preparing a motion to compel and requested a two-week extension for its filing. (Suppl. Khanna Decl., ¶ 11, Exh. D.) Plaintiff's counsel indicated that if confirmation of the extension was not received within one hour, they would proceed to file that day and would not

withdraw the motion. (Suppl. Khanna Decl., ¶ 11, Exh. D.) Defendant's counsel did not respond. (Suppl. Khanna Decl., ¶ 11.)

Defendant asserts that the motion should be denied due to Plaintiff's failure to complete the meet and confer process prior to filing. (Opp., pp. 5:16-6:4.) Specifically, Defendant argues, "One or more meet and confer sessions had already been successful, and [Defendant's] attorney was working to produce additional documents, while [Plaintiff's] attorneys had agreed to 'drop' certain demands. The extensive email exchanges attached to the declarations in support of the Motion make clear that [Plaintiff's] attorneys were cooperating with opposing counsel, and were 'working' with him in light of delays he had encountered, and had justified. ¶ The point was never reached that [Defendant's] counsel stated that his client would not further discuss the discovery disputes in further meet and confer session(s), or that his client would not produce the further documents that were being demanded. The effect of the Motion is to ask the court to rule on all the issues raised in the meet and confer letters without completion of the mandatory meet and confer process." (Opp., pp. 5:17-6:1.)

While the Court acknowledges that both parties were actively engaged in the meet and confer process, it also observes that Plaintiff had until June 18, 2026, according to the mutually agreed-upon extension, to file any necessary motions to compel further responses. Defendant's counsel did not respond to multiple emails soliciting an extension. Consequently, the Court finds it appropriate for Plaintiff to have filed this omnibus motion before any motion to compel could be deemed untimely.

Furthermore, in light of the numerous email correspondences and telephonic conferences, the Court finds that Plaintiff's counsel sufficiently met and conferred with Defendant before filing this omnibus motion.

DISCUSSION

Omnibus Motion

Plaintiff is seeking a court order to compel Defendant to provide further, code-compliant, verified responses, without objections, and to produce all documents related to Request for Production Nos. 4, 6, 12, 13, 15, 16, 17, 31, 38, 42, 44, 45, 46, and 47 in Set One, as well as Request for Production Nos. 48, 49, 51, and 52 in Set Two. (MTCF, pp. 10:25-11:1.) Plaintiff has erroneously combined two distinct motions into one omnibus motion.

Multiple motions should not be combined into a single filing. (See Cal. Gov. Code, § 70617, subd. (a)(4) [setting forth the required filing fee for each motion, application, or any other paper or request requiring a hearing].) Combining multiple motions under the guise of one motion with one hearing reservation manipulates the Court Reservation System and unfairly jumps ahead of other litigants. Moreover, combining motions to avoid payment of separate filing fees deprives the Court of the filing fees it is otherwise entitled to collect. Filing fees are jurisdictional, and it is mandatory for court clerks to demand and receive them. (See *Duran v. St. Luke's Hospital* (2003) 114 Cal.App.4th 457, 460.)

The Court informs Plaintiff that all future motions must be filed individually, pursuant to Government Code section 70617. Any omnibus filings submitted in the future shall be denied without prejudice.

California Rules of Court, rule 3.1345

"Except as provided in (b), any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement. The motions that require a separate statement include a motion: ... ¶ (2) To compel further responses to interrogatories; [and] ¶ (3) To compel further responses to a demand for inspection of documents or tangible things[.]" (Cal. Rules of Court, rule 3.1345(a)(3).) However, "[a] separate statement is not required under the following circumstances:

¶ (1) When no response has been provided to the request for discovery;

¶ (2) When a court has allowed the moving party to submit--in place of a separate statement--a concise outline of the discovery request and each response in dispute." (Cal. Rules of Court, rule 3.1345(b).)

In this present case, Defendant provided its relevant responses to the discovery requests on May 4, 2026. (Khanna Decl., ¶¶ 5-6.) Given that Defendant responded, it is necessary to include a separate statement or concise outline of the discovery requests. However, Plaintiff has not furnished either document. This issue is exacerbated by Plaintiff's failure to include the discovery requests and responses for the Court's review. It is Plaintiff's responsibility to supply this information to enable the Court to evaluate the merits of Plaintiff's omnibus motion.

Accordingly, the Court DENIES Plaintiff's omnibus motion and the accompanying request for monetary sanctions.

Defendant's Request for Monetary Sanctions

Defendant requests \$3,500.00 in monetary sanctions, asserting that this motion was filed without substantial justification. (Opp., p. 7:17-19.) However, Defendant fails to explain why \$3,500.00 would be a suitable sanction. Defendant does not provide any information regarding the costs incurred, the number of hours spent on this motion, or the hourly rate of their counsel. Accordingly, the Court finds it unjust to impose such a sanction and DENIES Defendant's request.

ORDERS

1)
Plaintiff
Patricia Villa's Motion to Compel Further Responses to Plaintiff's Requests for Production of Documents, Set One, is DENIED.

2)
Plaintiff
Patricia Villa's Motion to Compel Further Responses to Plaintiff's Requests for Production of Documents, Set Two, is DENIED.

3)
Plaintiff

Patricia Villa's Request for Monetary Sanctions is DENIED.

4)

Defendant

Richard Palomo's Request for Monetary Sanctions is DENIED.

5)

Plaintiff

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: August 28, 2026

Tamara

Hall

Judge

of the Superior Court